

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR065995: IN RE THE MATTER OF REBECCA J TOLENTINO FAMILY
TRUST**

08/13/2026 in Department J6

Hearing on Petition for Order Confirming Real Property as Asset of the Trust

If there is an encumbrancer on the property, they require notice. Notice must be given in the manner provided in Chapter 4 (commencing with Section 413.10) in Title 5 of Part 2 of the Code of Civil Procedure. (Prob. Code, § 851, subd. (a)(2).) This does not mean that a summons should be served but rather that the manner of service must be the same as for a summons (e.g., personal service, leaving and mailing copies, or by mail with notice and acknowledgement of receipt).

Aside from the potential notice defect, the Court intends to deny the petition on its merits.

At the outset, Petitioner alleges that she is the successor trustee due to her mother's lack of capacity. Section 3.4 of the Trust provides:

“My Trustee under this Trust is disabled or under a disability when he or she is unable to appropriately manage a Trust under this Trust for reasons such as mental illness, mental deficiency, physical illness or disability, chronic use of drugs, chronic intoxication, confinement, detention by a foreign power or disappearance. My Trustee's disability shall be conclusively established if either my Trustee's regularly attending physician or two doctors, authorized to practice medicine in the State in which my Trustee is then residing issue written certification to that effect.”

The letter from Mani Nezhad, MD, is not certified. The letter from Joseph Papador, DO, is also not certified. Accordingly, it appears to the Court that the settlor/trustee's incapacity has not been conclusively established in accordance with the Trust terms.

Re the *Heggstad* relief, the settlor executed a trust transfer deed on 3/25/23 conveying the Property to the Trust. But on 10/15/25, the trustee executed a deed granting the Property to Petitioner and the settlor individually as joint tenants. Petitioner appears to argue that the deed should be ignored as to the settlor's 50% interest while given effect as to Petitioner's 50% interest. This argument lacks merit. The 2025 deed conveyed the Property out of the Trust. Accordingly, the Court will deny the petition.